

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk

May 9, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, and Mr. Spiker. Absent: Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on April 25, 2011. Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Allen. Comments were made regarding a voucher payable to Scott Gromer, refund request relative to lack of a recreation center in Cheyenne; funding upgrades to the municipal pool, and proposed projects for the next 6th penny sales tax ballot question as reported in a recent newspaper article. Upon inquiry, Rick Parish, Parks and Recreation Director, reviewed a voucher payable to Colorado Analytical Lab for Airport Golf Course soil testing. Motion carried. Voting "yes" -- all members of the governing body present. Under other City business later in the meeting, Mr. Parish provided further explanation regarding the voucher payable to Mr. Gromer, stating the funds had been previously received by the City from the Air National Guard for recreational use by the Gromer family, who wish to utilize the funds toward recreational opportunities in another community.

Mayor Kaysen opened a public hearing to receive comments and input for a restaurant liquor license application filed with the City Clerk's Office for 888 Mr. Hibachi, LLC d/b/a Mr. Hibachi, 1439 Stillwater Avenue, Suites 1 and 2, Cheyenne, Wyoming. There being no comments and the purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the item to Finance Committee.

Mayor Kaysen opened a public hearing to receive comments and input on the proposed amendment to the Major Street Plan Official Map 2003 by updating the Official Map with newly platted and built roads, and by adding U.S. Highway 30 and Dell Range Boulevard intersection, East Pershing Boulevard and Christensen Road intersection, and U.S. Highway 30 and Christensen Road intersection details. Tom Mason, Director, Metropolitan Planning Organization, explained the purpose of the public hearing; reviewed the proposed amendments to the official map based on

PlanCheyenne, the addition of roads, street alignments and future growth, and stated the Planning Commission had reviewed the proposed changes and recommended approval. He referenced a packet of information previously provided to members of the governing body, and reviewed how the map is functionally related to street/road classifications. Upon inquiry, Mr. Mason reviewed rights-of-way development and identification procedures for future Greenway path placements, and advised the purpose of the official map is for a street plan, not a Greenway map. Comments followed regarding placement of Greenway paths on the map, and Christensen railroad overpass plans. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

Mayor Kaysen opened a public hearing to receive comments and input on the City's intent to submit a grant request to the Wyoming Business Council for a Business Ready Communities, Business Committed Grant, for pedestrian improvements to West Lincolnway, and streetscape improvements on West 17th Street, Thomes and Pioneer Avenues adjacent to Block 392, Original City, Cheyenne, Wyoming. Cindy Schneider, Grants Manager, clarified the primary intent of this type of grant is to build community infrastructure involving a specific business who has committed to relocate or expand in the community. She noted the local business entity is Western EcoSystems Technology, Inc., who plans to move its current local office, due to business growth, to the historic Dinneen's building on West Lincolnway, a downtown redevelopment project by Dinco Development, LLC. Ms. Schneider discussed the grant funding amount being sought (\$770,625.00) and required 10% match if the grant is approved. She stated the 10% match would be provided by Dinco Development (cash plus in-kind land donation) and Downtown Development Authority (DDA) funding in the amount of \$15,000.00, and that the grant funding, if approved, is just a portion of the overall redevelopment project being accomplished through private investment. Randy Byers, The Design Studio, Inc., architect for Dinco Development, submitted schematic drawings of the proposed redevelopment project (on file with City Clerk's office) and reviewed major components of the plan involving widening of the sidewalk, raised landscaping, buffering, streetscape improvements and enhanced lighting on 17th Street. Mr. Byers verified there is no request for project funding assistance from the City nor surrounding landowners, and explained the in-kind land donation based on the setback area of the Dinneen Bldg. as recognized through the Wyoming Business Council. Upon inquiry, Mr. Byers provided information on trees that will be planted as part of the landscaping; possible irrigation plans after trees mature; project compatibility with DDA's established streetscaping design, and street lighting plans for W. 17th Street and proposed placement of a statue through private funding by the Dinneen family. Appreciation was expressed to the Dinneen family for the downtown redevelopment project involving the area and for making project information available to the public through the use of social media. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

"Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established, Section 17.08.040, Cheyenne City Map, of the Cheyenne City Code, by changing the zoning classification from AR Agricultural Residential District to MR-2 Medium Density Residential-Developing District for Block 1, Lots 6-15; Block 3, Lots 1-15 and Block 4, Lots 1-8; HR-2 High Density Residential-Developing District for Block 1, Lots 1-5 and Block 2, Lots 1-26; a replat of a portion of Tracts 7 and 10, Dell Range Addition, 2nd Filing, Cheyenne, Wyoming, also to be known as Granite Hills Subdivision (located north of and adjacent to Carla Drive, between Ridge Road and College Drive)."

Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Ms. Ash. Comments followed on the development being tailored after PlanCheyenne, and high density level and school capacity concerns for the area. Motion carried. Voting “yes” -- all members of the governing body present. (#3920)

“An Ordinance annexing to the City of Cheyenne, Wyoming, a parcel(s) of land being situated in the SE1/4 of Section 11, and in the NE1/4 of Section 14, T.13N., R.67W., 6th P.M., Laramie County, Wyoming (generally located at Interstate 25 and West College Drive)” -- referred to Public Services Committee (sponsor - Mr. Collins).

“An Ordinance amending the Major Street Plan Official Map 2003, by up-dating the entire Major Street Plan Official Map with newly platted and built roads, and by adding the U.S. Highway 30 and Dell Range Boulevard intersection, East Pershing Boulevard and Christensen Road intersection, and U.S. Highway 30 and Christensen Road intersection details” -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “Resolution approving the City of Cheyenne’s 2011 Annual Action Plan prepared by the Cheyenne Housing and Community Development Office.” Motion (per Consent Agenda) carried. (#5272)

[CA] “Resolution renaming Lawana Court and Lajuana Court within Cottonwood Meadows, a replat of Lots 1 through 6, Block One, Bussard Subdivision, City of Cheyenne, Laramie County, Wyoming, as Hope Court (generally located south of Rock Springs Street and east of Monroe Avenue.” Motion (per Consent Agenda) carried. (#5273)

“Resolution authorizing the Mayor and the City Clerk to sign a final plat for Granite Hills Subdivision, a replat of a portion of Tracts 7 and 10, Dell Range Addition, 2nd Filing, Cheyenne, Wyoming (located north of and adjacent to Carla Drive, between Ridge Road and College Drive).” Mr. Collins moved to adopt with staff recommendations #1 and 2, seconded by Ms. Ash. Motion carried. Voting “yes” - all members of the governing body present. (#5274)

[CA] “Resolution authorizing the Mayor to terminate Lease Agreement No. 4745 entered into by the City of Cheyenne and Cheyenne American Legion Post 6 Baseball Club, Inc., dated March 28, 2005”-- referred to Finance Committee (due to postponement from April 11, 2011).

[CA] “Resolution authorizing the Mayor and the City Clerk to sign a final plat for Cheyenne Business Parkway, 6th Filing, a replat of Lots 1 and 2, Block 4, Cheyenne Business Parkway, 4th Filing; Lots 2 and 3, Block 2 and Lots 5 and 6, Block 1, Cheyenne Business Parkway, 3rd Filing, Cheyenne, Wyoming (located west of and adjacent to Christensen Road, between Campstool Road and the UPRR right-of-way)” -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “Resolution authorizing the Mayor and the City Clerk to sign a final plat for Pointe Plaza, 2nd Filing, a replat of Lot 2, Block 5, The Pointe, and a portion of Lots 1 and 2, Block 2, Pointe Plaza, Cheyenne, Wyoming (located northeasterly of Gardenia Drive, between Spirit Lane and Legacy Parkway)” -- referred to Public Services Committee (sponsor - Mr. Collins.)

[CA] “Resolution authorizing submission of an application to the Wyoming Business Council, Business Ready Community Grant and Loan Program, for funding through the Business Committed Grant Program to assist in making pedestrian and streetscape improvements to West Lincolnway, West 17th Street, Thomes Avenue and Pioneer Avenue adjacent to Block 392, Original City of Cheyenne, Wyoming” -- referred to Finance Committee (sponsor - Dr. Rinne).

[CA] “Resolution selecting a preferred proposal and authorizing the Mayor to enter into negotiations for the sale of approximately 28 acres of City-owned land located near the southeast corner of the intersection of Windmill Road and Dell Range Boulevard, Cheyenne, Wyoming” -- referred to Finance Committee (sponsor - Mr. Brown.)

[CA] Agreement between the City of Cheyenne and King Ranch Company, L.P., for the lease of certain lands located at the City Landfill for grazing purposes. Motion (per Consent Agenda) carried. (Amendment to Agreement #3137)

[CA] Safe Routes to School Project Agreement between the City of Cheyenne and the Wyoming Department of Transportation for the Arp Elementary Pathway Project (1% Specific Purpose Sales and Use Tax and WYDOT funds). Motion (per Consent Agenda) carried. (#5683)

[CA] Professional Services Agreement between the City of Cheyenne, Engineering Department, and WWC Engineering, Laramie, Wyoming, for supplemental construction inspection services (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Police Department, and Laramie County School District No.1 for School Resource Officers for summer school 2011 -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Police Department, and Laramie County Sheriff's Department and Laramie County, Wyoming, for housing prisoners at the Laramie County Detention Center -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Municipal Court, and Laramie County Sheriff's Department and Laramie County, Wyoming, for courthouse security services -- referred to Finance Committee.

[CA] Modification No. 1 to Professional Services Agreement No. 5217 between the City of Cheyenne, Planning Services Department, and Gould Evans Associates, LC, to complete additional revisions of the Unified Development Code for the City of Cheyenne -- referred to Finance Committee.

[CA] Consideration of Bid #R-26-11 for furnishing 700 95-gallon and 200 65-gallon automated refuse carts for the Public Works Department, Sanitation Division. Motion (per Consent Agenda) carried (Otto Environmental, Eloy, AZ - amount not to exceed \$44,949.00).

[CA] Consideration of Bid #R-25-11 for three new 2011 Polaris Ranger Crew 800 utility terrain vehicles from Polaris Suzuki of Cheyenne, Wyoming for the Police Department (2010 Byrne Justice Assistance Grant). Motion (per Consent Agenda) carried (amount not to exceed \$41,955.00).

[CA] Consideration of Bid #M-13-11 for a contract between the City of Cheyenne and JTL Group, Inc., d/b/a Knife River, Cheyenne, Wyoming, for the 2011 City Overlay project (2007-2010, 2011-2014 1% Sales Tax) -- referred to Finance Committee.

Appointment of Rolfe Burgess to the Cheyenne Planning Commission, and Nathaniel T. Steinhoff to the Community Action of Laramie County Board of Directors. Mr. Collins moved to approve, seconded by Dr. Rinne. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made of the Appointment of Bradley G. Oberg to the Board of Public Utilities to be confirmed May 23, 2011.

Under other City business:

Frank Cole, Cole Shopping Center, submitted information he received in conjunction with his attendance at a recent conference of the International Council of Shopping Centers relative to economic and financial contributions by shopping center operations in Wyoming (copy on file with City Clerk's office).

Matt Ashby, Planning Services Director, introduced Elaine Carmichael and Tom Gallaher, consultants working on the downtown placemaking project involving revitalization. Ms. Carmichael and Mr. Gallaher expressed appreciation for everyone's help thus far on the project. It was noted the next public meeting would be held Thursday, May 12th at 5:30 p.m. at the Plains Hotel to discuss how to make downtown Cheyenne a better place to live, work, visit and shop.

Tom Lindsey spoke in support of possible development of a downtown hotel and suggested, due to concerns with parking space, having an underground parking level for the hotel and a main level with a health food store and restaurant.

Comments followed regarding proposed City projects for the next 6th penny ballot proposal pursuant to a recent newspaper article. Mayor Kaysen advised very preliminary discussions have been held regarding proposed projects, and provided information on his meetings with department heads; request for information on proposed projects by the local newspaper resulting in the article; statutory process relative to a ballot proposal; preliminary meeting with County officials, and City Council's input and approval, and role relative to meetings at the County meeting level. Additional comments were made regarding communication with Council members in conjunction with media information requests received by the Mayor, and Council representation involving the process for determining proposed 6th penny projects.

Pursuant to inquiry regarding lack of lighting in some Greenway tunnels, Mayor Kaysen advised Parks and Recreation staff would check into the matter.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:00 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
May 19, 2011